



FIA FORMULA E WORLD CHAMPIONSHIP ROUND 9&10 - MONACO E-PRIX 14 - 17 MAY 2026

Decision no. 40

From: The Stewards
To: DS PENSKE

Date: 8 June 2026
Time: 08:45

The Stewards have received a petition for review in writing from DS PENSKE, requesting the Stewards to review, in accordance with Article 14 of the FIA International Sporting Code, Decision No. 35 (AMENDED), issued during Round 10 of the 2026 Monaco E-Prix of the 2025/2026 FIA Formula E World Championship.

Decision No. 35 (AMENDED) concerned Car 7, Driver Maximilian Günther, and a breach of Article 39.1 a) of the 2025/2026 FIA Formula E World Championship Sporting Regulations, for exceeding the prescribed speed under Full Course Yellow. The original Decision imposed a 5 second time penalty and 1 penalty point, with the time penalty converted into a drop of 3 grid positions for the next Race in which the Driver takes part, in accordance with Article 16.3 of the 2025/2026 FIA Formula E World Championship Sporting Regulations.

The Petition was submitted in writing by DS PENSKE by e-mail on Monday, 18 May 2026 at 17:28 CET.

The Stewards, having examined the Petition for Review and having summoned and heard the Team Representative of DS PENSKE, Mr Chris Bluett, and the Driver of Car 7, Mr Maximilian Günther, during an online hearing held on 27 May 2026 at 15:30 CET, determine the following.

DECISION 1 - FORMAL ADMISSIBILITY OF THE PETITION

The Stewards first considered whether the Petition satisfies the formal requirements of Article 14 of the FIA International Sporting Code.

The Stewards note that DS PENSKE is the Competitor of Car 7 and is therefore a party directly concerned by Decision No. 35 (AMENDED).

The Stewards further note that the Petition concerns a single decision, namely Decision No. 35 (AMENDED).

Pursuant to Article 14.4.1 of the FIA International Sporting Code, a Petition for Review must be lodged no later than 96 hours after the end of the Competition concerned. The final classification of the Monaco E-Prix was issued on Sunday, 17 May 2026 at 19:32 CET and the applicable deadline therefore expired on Thursday, 21 May 2026 at 19:32 CET. The Petition was submitted on Monday, 18 May 2026 at 17:28 CET and was therefore submitted within the applicable deadline. The Stewards also note that the Petition was submitted in writing and identified the alleged elements relied upon by DS PENSKE, namely telemetry and post-race explanations concerning the activation and operation of the Full Course Yellow speed limiter, including throttle and brake traces, onboard video footage, and information relating to the gaps to other cars.

The required deposit pursuant to Article 14.4.3 of the FIA International Sporting Code was received, as confirmed by the Stewards' Secretary.

The Stewards therefore determine that the formal requirements under Article 14 of the FIA International Sporting Code have been satisfied.

Decision 1: The Petition for Review is admissible.

This Decision 1 is subject to appeal in accordance with the applicable provisions of the FIA International Sporting Code.

DECISION 2 - EXISTENCE OF A SIGNIFICANT AND RELEVANT NEW ELEMENT WHICH WAS UNAVAILABLE

Having determined that the Petition is formally admissible, the Stewards then considered whether the Petition identifies a significant and relevant new element which was unavailable to the Stewards at the time Decision No. 35 (AMENDED) was taken, within the meaning of Article 14.1.1 of the FIA International Sporting Code. For the purposes of this assessment, the Stewards consider an element to be significant if it would have been capable of materially affecting the original Decision, including both the finding of breach and the penalty imposed.

As Decision No. 35 (AMENDED) was an in-race decision and no hearing was conducted before that Decision was taken, the relevant test under Article 14.1.1 of the FIA International Sporting Code is whether the alleged new element was unavailable to the Stewards at the time the original Decision was taken.

In Decision No. 35 (AMENDED), the Stewards found that Car 7 reduced its speed to 50 km/h within 5 seconds of the Full Course Yellow being deployed, but subsequently exceeded that speed again for 4 seconds, reaching 55.7 km/h.

Article 39.1 a) of the 2025/2026 FIA Formula E World Championship Sporting Regulations provides that, when Full Course Yellow boards and flags are shown on the track, all cars must immediately slow down, that the maximum time to reduce speed to 50 km/h is 5 seconds, and that the maximum permitted speed once under Full Course Yellow is 50 km/h. The same Article further provides that only the speed, and not the distance between the cars, will be policed by Race Control.

During the hearing, the Team Representative and the Driver explained that the Driver had reduced the speed of Car 7 below 50 km/h within the prescribed 5-second period after the Full Course Yellow was deployed. They further explained that the Driver was uncertain whether the Full Course Yellow speed limiter had been correctly activated. According to the explanation given, the Driver believed that he may not have pressed the button sufficiently firmly, pressed it again, and thereby unintentionally deactivated the limiter. The Driver then remained below 50 km/h before gradually increasing speed in order to check whether the limiter was active, which resulted in the speed of Car 7 subsequently increasing above 50 km/h. When he realised that the limiter was not active, he slowed again and pressed the button to activate it correctly. The Driver accepted during the hearing that Car 7 had exceeded the prescribed Full Course Yellow speed limit.

The Stewards accept that this explanation was new and was unavailable to the Stewards at the time Decision No. 35 (AMENDED) was taken. The Stewards also accept that this explanation is relevant, in the sense that it explains how the overspeed occurred. However, the Stewards do not consider it to be significant within the meaning of Article 14.1.1 of the FIA International Sporting Code. The explanation provided by the Driver and the Team Representative may explain the mechanism by which the breach occurred, but it does not materially alter the fact that Car 7 exceeded the prescribed Full Course Yellow speed limit. Even if the explanation is accepted in full, it would not have changed the finding of breach. Nor would it have materially affected the penalty imposed, including the penalty point, since the original penalty was imposed for exceeding the prescribed speed under Full Course Yellow and not on the basis of the mechanism by which the overspeed occurred or the Driver's intent.

The Stewards also considered the throttle and brake traces submitted by DS PENSKE. The Stewards accept that these traces may be regarded as 'new' in the sense that they were newly presented and explained in the context of the Petition for Review. They were, however, generated live and available within the FIA/Race Control systems at the time of the original Decision. Furthermore, the Stewards consider that, although relevant to the explanation advanced by DS PENSKE, these traces are not significant for the purposes of Article 14.1.1 of the FIA International Sporting Code. The throttle and brake traces provide additional information as to the driver inputs which led to the speed profile of Car 7, but they do not materially alter that speed profile. The speed profile itself was already available to and considered by the Stewards when the original Decision was taken. Ultimately, it was the speed of the car, and not the underlying throttle or brake inputs, which formed the basis of the breach under Article 39.1 a).

The Stewards further considered the onboard video footage referred to during the hearing. The Stewards accept that the footage may be regarded as 'new' in the sense that it had not been reviewed by the Stewards when the original Decision was taken. However, the footage was available within the FIA/Race Control video systems at that time. The Stewards therefore do not consider that this element was unavailable within the meaning of Article 14.1.1 of the FIA International Sporting Code. The Stewards also consider that the footage is relevant, as it relates to the circumstances in which the overspeed occurred, but not significant. For the purpose of determining whether Car 7 exceeded the prescribed Full Course Yellow speed limit, the direct and decisive evidence was the speed telemetry, which was already available to and considered

by the Stewards when the original Decision was taken. The later presentation of the onboard footage does not materially affect that assessment or the penalty imposed.

The Stewards also considered the submissions concerning the absence of sporting advantage, the time allegedly lost by Car 7 relative to other cars, the gaps to other cars, and the Driver's submission that he acted cautiously. The Stewards do not consider these matters to constitute a 'new' element within the meaning of Article 14.1.1 of the FIA International Sporting Code. The Stewards accept that these matters are relevant to the explanation advanced by DS PENSKE, but do not consider them to be significant. The original Decision was not based on whether Car 7 gained an advantage, whether the gaps to other cars increased or decreased, or whether the Driver intended to gain an advantage. It was based on the fact that Car 7 exceeded the prescribed speed limit under Full Course Yellow. In addition, Article 39.1 a) of the 2025/2026 FIA Formula E World Championship Sporting Regulations expressly provides that only the speed, and not the distance between the cars, will be policed by Race Control. These matters would therefore not have been capable of materially affecting either the finding of breach or the penalty imposed.

The Stewards therefore determine that none of the elements presented by DS PENSKE, whether considered individually or collectively, satisfies all the cumulative requirements of Article 14.1.1 of the FIA International Sporting Code. None of them materially affects the basis upon which Decision No. 35 (AMENDED) was taken, namely that Car 7 exceeded the prescribed speed limit under Full Course Yellow, nor would any of them have materially affected the penalty imposed. Accordingly, no significant and relevant new element which was unavailable to the Stewards at the time of Decision No. 35 (AMENDED) has been established.

Decision 2: There is no significant and relevant new element which was unavailable to the Stewards at the time Decision No. 35 (AMENDED) was taken. Accordingly, the Stewards reject the Petition for Review. As the Petition for Review is rejected, the deposit is retained.

Competitors are reminded that, in accordance with Article 14.3 of the FIA International Sporting Code, Decision 2 as to whether or not a significant and relevant new element exists is not subject to appeal.

Mathieu Remmerie
Chairman of the Panel

Michael Schwägerl
International Steward

Jean-François Calmes
National Steward